

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

7. KATHRYN MCDONALD V. JOHN MCDONALD

PFL20210430

On April 23, 2026, Respondent filed a Request for Order (RFO) seeking child support orders. On May 1st he filed another RFO seeking custody orders. He filed a supplemental declaration in support of his May 1st RFO on May 7th. None of these documents has a corresponding Proof of Service.

On May 26th, Minor's Counsel filed an RFO seeking school enrollment orders for the minors. It was served on June 2nd. Petitioner filed a Responsive Declaration to Request for Order on June 3rd.

The parties attended Child Custody Recommending Counseling (CCRC) on June 11th and were able to reach some agreements. A report with the agreements was prepared and mailed to the parties the same day.

Petitioner filed and served a Responsive Declaration to Request for Order on July 9th. Minor's Counsel has not filed a Responsive Declaration to Request for Order but she did file a Statement of Issues and Contentions on July 13, 2026. It was served on July 12th.

In response to Respondent's April 23rd RFO, Petitioner filed her Income and Expense Declaration and a Responsive Declaration to Request for Order on July 17th. She objects to the RFO as it was improperly served pursuant to Family Code § 215.

Petitioner filed and served a supplemental declaration on July 20th.

Respondent's RFOs are dropped from calendar due to lack of proper service.

Minor's Counsel is requesting an order to transfer the minors, Maverick and Michael, to Sutter Middle School and for CJ to attend Folsom High School. Petitioner does not oppose the request.

After reviewing the filings as outlined above, the court finds the agreements stated in the June 11, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modification. Celia shall be enrolled in Folsom High School. Respondent is ordered to provide any documents or signatures necessary to complete the transfers.

Minor's Counsel is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #7: RESPONDENT'S RFOS ARE DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE. THE COURT FINDS THE AGREEMENTS STATED IN THE JUNE 11, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATION. CELIA SHALL BE ENROLLED IN FOLSOM HIGH SCHOOL. RESPONDENT IS ORDERED TO PROVIDE ANY DOCUMENTS OR SIGNATURES NECESSARY TO COMPLETE THE TRANSFERS.

MINOR'S COUNSEL IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07